

**JUSTIFICATION for an EXCEPTION to FAIR OPPORTUNITY for the placement
of an order >\$15,000 under a Multiple Award Contract (MAC)**

Upon the basis of the following justification, as a Contracting Officer of Southwest Regional Maintenance Center (SWRMC), I hereby approve the Justification for an Exception to Fair Opportunity Pursuant to FAR 16.505(b)(2).

JUSTIFICATION

1. Agency and Contracting Activity. Department of the Navy, Southwest Regional Maintenance Center.

2. Nature/Description of Action. This is a fair opportunity exception to place an order with prospective Multiple Award Contract Indefinite Delivery/Indefinite Quantity (MAC-IDIQ) holder South Coast Welding and Manufacturing (SCW&M) under MAC-IDIQ number N00024-22-D-4470. The Delivery Order number is N5523626F2005 for the USS MAKIN ISLAND (LHD-8) Fiscal Year 2026 (FY26) Continuous Maintenance Availability (CMAV); SSP: TPPC-LHD8-SWRMC26-S001.

3. Description of Supplies/Services.

New Work Item 634-20-001 (RCC 1N) was created to repair the Flight Deck Thermal Spray Nonskid. The estimated value of this requirement is based on the Independent Government Estimate (IGE) from the SWRMC Ship Building Specialist for a total amount of [REDACTED]. Funding will be FY26 OM&N (D8). The Period of Performance for New Work RCC 1N is from 02 March 2026 to 10 April 2026. The Government's minimum needs have been verified by the certifying technical and requirements personnel.

4. Identification of the Exception to Fair Opportunity. (FAR 16.505 (b)(2))

Identification/Justification for Exception:

- ☐ a. **The agency need for services is of such urgency that providing fair opportunity would result in unacceptable delays.**
- ☐ b. **Only one such awardee is capable of providing such services required at the level of quality required because the services ordered are unique or highly specialized.**
- ☒ c. **The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the MAC, provided that all the awardees were given fair opportunity to be considered for the original order.**

Delivery Order N5523626F2005 in support of the USS MAKIN ISLAND (LHD-8) Continuous Maintenance (CMAV) was awarded competitively to SCW&M under the MAC-

IDIQ contract based on Lowest Price Technically Acceptable (LPTA) criteria. RCC 1N, work item 634-20-001, was written to accomplish repairs to the Flight Deck Thermal Spray Nonskid (TSN). Considering the upcoming deployment [REDACTED] it is critical that the 320 ft2 area of Spot seven (7) be repaired via Depot Level Repairs during the upcoming FY26 CMAV availability. It is also recommended that a 33 ft x 12" wide swath of Thermal Spray Nonskid (TSN) be completely repaired via Depot Level repairs on the weld just port of the Tram Line, between the horizontal weld at about the 648' mark, forward 33'. The period of performance for the upcoming availability is 02 March 2026 to 10 April 2026.

The scope of this repair is estimated to require a minimum of 400 square feet of nonskid, with growth potential to 500 square feet. Executing this repair will significantly minimize the risk of future TSN delamination and enhance confidence in the airworthiness of the deck during flight operations. These repairs are necessary as the deck needs the TSN replaced for completion of the certification required for flight deck operations [REDACTED]

Adding this work item to the existing delivery order provides the most economical and efficient solution as SCW&M is already in position to complete the scheduled availability with support services already on contract. Re-competing the work would be inefficient and result in unnecessary costs, including the duplication of the mobilization efforts (equipment, personnel, etc.). Awarding this new work to the current contractor will generate cost savings for the Government—estimated at approximately \$31,518.00—due to the established crane, forklift services, air compressors, power, drain & disposal services, and personnel already in place for the basic work under the S001 CMAV. Additionally, delaying the settlement of the work item would negatively impact on the ship's readiness status and ultimately increase overall costs due to an extended timeline of the availability.

Furthermore, the incumbent contractor, SCW&M, already is positioned to execute this work swiftly, ensuring operational continuity and mitigating safety risks. Recompeting the work would introduce logistical complexity and inefficiencies; a new team would require time to familiarize themselves with the ship's layout and current repair progress, leading to potential delays and rework. Given the limited onboard space, introducing a second contractor would cause unnecessary congestion and complicate access to critical areas. In conclusion, utilizing the incumbent contractor maximizes efficiency, ensures the timely completion of critical repairs, and optimizes resource usage. This approach maintains technical continuity.

- ☐ **d. It is necessary to place an order to satisfy a minimum guarantee.**
- ☐ **e. For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source.**

5. Determination of Fair and Reasonable Cost.

A thorough review and analysis, with regard to price and scope, of the pricing information Provided by SCW&M will be conducted by the Project Team (PT) and verified by the Contracting Officer. Determination of fair and reasonable costs will primarily be accomplished by use of parametric methods used to determine reasonableness of labor hours, materials, and times proposed by SCW&M, in accordance with FAR 15.404-1(b)(2)(iii). Furthermore, application of rough yardsticks will be utilized for significant inconsistencies that warrant additional pricing inquiries in addition to reviewing any historical pricing information for SCW&M that is available, as well as similar work accomplished by other contractors. This analysis will be accomplished in conjunction with comparison of all proposed labor hours and material by the PT with verification by the Contracting Officer.

The Contracting Officer has determined that, to the Government, this Acquisition will be fair and reasonable based on FAR 15.404-1(e)(1), technical analysis from the PM, FAR 15.404-1(b)(2)(i) – comparison of proposed prices of labor and material burden rates received in response to the solicitation, and FAR 15.404-1(b)(2)(v), comparison with the IGE.

6. Description of Efforts Made to Solicit Offers From as Many Offerors as Practicable:

All offerors under the MAC IDIQ were given a fair opportunity to submit proposals in response to the solicitation for availability. Since this constitutes new work, it would be unrealistic to impose contractual expectations that could overcome the barriers leading to this exception. Additionally, if the work is not completed within this availability window, the USS MAKIN ISLAND (LHD-8) will be unable to meet its current deployment obligations, thus incurring mission risk for the Government.

7. Actions Taken to Remove or Overcome Barriers that Led to the Exception to Fair Opportunity:

Lessons learned will be implemented to ensure requiring activities fully identify requirements before the requirement package is submitted to contracts or identify potential new work items during the ship visits so that the solicitation can be prior to award to mitigate issuing new work in a sole source environment.

TECHNICAL AND REQUIREMENTS CERTIFICATION (FAR 16.505(b)(2))

I certify that the facts and representations under my cognizance, which are included in this Justification and which form a basis for this justification are complete and accurate.

Technical Cognizance/or COR:

SANCHEZ.VICTOR.EMMANUEL.

Signature: _____

Digitally signed by
SANCHEZ.VICTOR.EMMANUEL
Date: 2026.02.05 09:18:47 -08'00'

Printed/Typed Name and Title

Code

Phone

Date

LEGAL REVIEW (SWRMCINST 5430.1B): (>\$350,000)

Signature: N/A

Printed/Typed Name and Title

Code

Phone

Date

APPROVAL:

CONTRACTING OFFICER CERTIFICATION (FAR 16.505(b)(2)): (>\$15,000 to ≤\$900K)

I certify that this justification is accurate and complete to the best of my knowledge and belief.

Signature: MONTGOMERY.SHOSHANA.A Digitally signed by
MONTGOMERY.SHOSHANA.A.DAR. [Redacted]
Date: 2026.02.05 09:55:38 -08'00'

Printed/Typed Name and Title

Code

Phone

Date

REVIEW:

2.0 BRANCH HEAD (FAR 16.505(b)(2)): (>\$900K)

Signature: N/A

Printed/Typed Name and Title

Code

Phone

Date

APPROVAL:

COMPETITION ADVOCATE (FAR 16.505(b)(2)) (>\$900K to \$20M):

Signature: N/A

Printed/Typed Name and Title

Code

Phone

Date

APPROVAL:

HEAD OF THE CONTRACTING ACTIVITY (FAR 16.505(b)(2)) (>\$20M to \$150M):

Signature: N/A

Printed/Typed Name and Title

Code

Phone

Date